

**BEFORE THE DISTRICT CONSUMER DISPUTES REDRESSAL COMMISSION
AT CHENNAI (NORTH), TAMIL NADU**

Consumer Complaint No.: CC/127/2025

Date of Filing: 15.03.2025

Date of Order: 22.11.2025

Date of Hearing: 08.11.2025

CORAM:

Smt. K. Lakshmi Priya, B.Sc., B.L., President

Sri. R. Subramanian, M.A., B.L., Member

Smt. S. Vimala, M.A., M.L., Member

Arjun Ramachandran, S/o Late R. Ramachandran

No. 14, Second Cross Street, Anna Nagar West,
Chennai - 600040, Tamil Nadu.

...Complainant

Versus

1. Flipkart Internet Private Limited

Embassy Tech Village, Devarabeesanahalli,
Outer Ring Road, Bengaluru - 560103, Karnataka.
Represented by its Authorized Signatory.

2. Tech Source Retail Private Limited

Plot No. 42, Industrial Area, Phase II,
Bengaluru - 560058, Karnataka.
(Seller on Flipkart Marketplace)
...Opposite Parties

ORDER

Per Smt. K. Lakshmi Priya, President:

1. Brief Facts of the Case

The complainant purchased a Samsung Galaxy M34 smartphone (Model: SM-M346B, 128GB, Midnight Blue) from the website of the First Opposite Party (Flipkart) on 04.02.2025 for a consideration of Rs. 16,499/- inclusive of all taxes. The product was sold and dispatched by the Second Opposite Party as a third-party seller on the marketplace.

The product was delivered to the complainant on 07.02.2025. Upon unboxing in the presence of the delivery executive, the complainant noticed that the device displayed a malfunctioning screen with visible discoloration along the right edge and intermittent flickering during basic operation.

The complainant raised a return request through the First Opposite Party's mobile application on the same day (07.02.2025). The return request was acknowledged with Return ID 23BX-4421-8819, and a pickup was scheduled for 09.02.2025.

On 10.02.2025, the complainant received an email from the First Opposite Party stating that the return request had been rejected following a 'quality check' which purportedly found 'no defect' in the

device. No technical report, photographs, or diagnostic information were furnished in support of this conclusion.

2. Contentions of the Complainant

The complainant contends that the device suffers from a manufacturing defect which was apparent from the time of unboxing, and that the rejection of his return request without any substantiating evidence amounts to deficiency in service within the meaning of Section 2(11) of the Consumer Protection Act, 2019.

It is further contended that the First Opposite Party, despite operating an e-commerce marketplace, has held itself out as the seller in all customer communications and bears joint and several liability under Section 2(17) read with Rule 4(2) of the Consumer Protection (E-Commerce) Rules, 2020.

The complainant has produced the original tax invoice (Ex. P-1), payment confirmation showing UPI transaction (Ex. P-2), four photographs of the defective screen taken at the time of unboxing (Ex. P-3 to P-6), screenshots of the return request and rejection communication (Ex. P-7 and P-8), and an independent technical evaluation report dated 18.02.2025 from M/s Mobile Care Centre, Chennai, confirming the presence of a manufacturing defect in the display panel (Ex. P-9).

3. Reply of the Opposite Parties

The First Opposite Party, in its written version, has contended that it is merely an intermediary providing an online marketplace platform under Section 79 of the Information Technology Act, 2000, and that liability for product quality lies exclusively with the Second Opposite Party as the actual seller.

The Second Opposite Party has not entered appearance despite service of summons and has been set ex parte vide order dated 12.06.2025.

The contention of the First Opposite Party that it is a mere intermediary is unsustainable. The Consumer Protection (E-Commerce) Rules, 2020 explicitly impose duties on e-commerce entities including grievance redressal and seller accountability, and the rejection of return without proper inspection cannot be shielded by the intermediary defence.

4. Issues for Determination

- (a) Whether the device delivered to the complainant suffered from a manufacturing defect?
- (b) Whether the rejection of the return request by the First Opposite Party constitutes deficiency in service?
- (c) Whether the complainant is entitled to refund and compensation, and if so, to what extent?

5. Findings and Reasoning

Upon examination of the photographic evidence and the independent technical report (Ex. P-9), this Commission is satisfied that the device delivered to the complainant did suffer from a manufacturing defect in the display panel. The technical report, prepared by an authorized service centre, specifically identifies the defect as originating from the panel assembly stage and not from physical damage or misuse.

The rejection of the return request without furnishing any technical report or diagnostic findings amounts to arbitrary action and constitutes a clear case of deficiency in service under Section 2(11) of the Consumer Protection Act, 2019.

The First Opposite Party cannot escape liability merely by characterizing itself as an intermediary. Rule 4(2) of the Consumer Protection (E-Commerce) Rules, 2020 places clear obligations on e-commerce entities, including with respect to grievance redressal and ensuring that goods sold through

their platform conform to the descriptions provided.

On the question of relief, the complainant has prayed for refund of Rs. 16,499/-, compensation of Rs. 15,000/- for mental harassment and time lost, and litigation costs of Rs. 3,000/-. Having regard to the nature of the dispute, the conduct of the Opposite Parties, and the documented harassment caused to the complainant, the Commission finds the prayer reasonable.

6. Order

For the reasons set out above, this Commission finds that the complainant has established deficiency in service on the part of both Opposite Parties, who are jointly and severally liable.

In view of the foregoing, the Commission hereby directs:

- (a) The Opposite Parties are jointly and severally directed to refund the sum of Rs. 16,499/- (Rupees Sixteen Thousand Four Hundred and Ninety-Nine only) to the complainant, being the price paid for the defective device.
- (b) The Opposite Parties shall pay a compensation of Rs. 15,000/- (Rupees Fifteen Thousand only) to the complainant for the mental agony, harassment, and loss of time caused by their deficient service.
- (c) The Opposite Parties shall pay simple interest at the rate of 9% per annum on the principal amount of Rs. 16,499/- from the date of complaint (15.03.2025) till the date of actual realisation.
- (d) The complainant shall return the defective device to the First Opposite Party within 15 days of receipt of the refund. The First Opposite Party shall make arrangements for pickup at its own cost.
- (e) The above directions shall be complied with within 45 days from the date of this Order, failing which the awarded amounts shall carry further interest at 12% per annum until full satisfaction.

The complaint is accordingly **allowed** with the above directions. Compliance to be reported within the time stipulated. Costs of Rs. 3,000/- are also awarded to the complainant.

(Smt. K. Lakshmi Priya)

(Sri. R. Subramanian)

(Smt. S. Vimala)

Place: Chennai

Date: 22.11.2025